

		supporting papers in advance of the hearing. Counsel should propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. 9. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6. The Court further refers Plaintiffs' counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiffs' counsel must file supplemental papers addressing the Court's concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a continuance. If supplemental papers addressing all of the Court's concerns cannot be filed by the pre-hearing deadline, Class Counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiffs to give notice of this ruling, including to the LWDA, within five (5) court days, and file proof of service.
111	Ruiz vs. Alloy Die Casting Co. 2024-01425826	Motion for Approval of PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$167,420 PAGA settlement. The court has the following questions and comments: 1. It does not appear all moving papers were submitted to the LWDA. Plaintiff must file with the court an actual proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should provide plaintiff's total anticipated consideration to be received (including for any individual

		claims). Plaintiff should also submit a copy of her individual settlement agreement (§ 5.1.1). 3. Plaintiff should provide the estimated high, low, and average individual awards for aggrieved employees. 4. The PAGA Penalties allocation is incorrect. §§ 1.24, 3.2.4, 3.2.4.1. Per AB 2288, for claims based on post-June 19, 2024 PAGA notices, 65% of recovered penalties go to the State and 35% go to the aggrieved employees. Additionally, providing for fixed dollar amounts (§ 3.2.4.1) is inconsistent with the settlement. In other words, the proposed disbursements result in the “Net Settlement Amount” (§ 1.17), which is the total amount of “PAGA Penalties” (§1.24). 5. The parties must determine whether the escalator provision (§ 8) has been triggered. 6. The proposed administrator must provide a written quote. 7. The “Released Parties” provision (§ 1.27) is overbroad. It includes unrelated, ambiguous and/or unidentified third parties including “attorneys, insurers,” and “assigns,” which should be removed. 8. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 9. All parties must state, in declarations filed with the court, whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the proposed settlement on that case. 10. Plaintiff’s counsel seeks attorneys’ fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 11. Plaintiff’s counsel seeks \$19,496.45 in costs. Plaintiff’s counsel should submit invoices supporting the mediation and expert costs. The costs totaling \$1,254.25 for copies, postage, etc. should be removed as the court does not reimburse such costs. <u>As to the notice:</u> 12. The notice letter should be revised consistent with the above.
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		revised notice, revised proposed order) and any settlement provisions revised via amendment. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents and file a proof of service.
112	Lundin vs. Goldman 2022-01290254	1. Motion for Summary Judgment and/or Adjudication (ROA 1471) 2. Motion for Leave to File Amended Cross Complaint (ROA 1491) 3. Motion to Compel Production (ROA 1481) 1. Motion for Summary Adjudication Plaintiffs/Cross-Defendants Leslie Lundin and Douglas T. Beiswenger’s motion for summary adjudication is CONDITIONALLY DENIED AS MOOT as to issue #1 and GRANTED as to issue #2. (Code Civ. Proc. [CCP], § 437, subd. (f)(1).) The motion seeks summary adjudication in Cross-Defendants’ favor and against Defendant/Cross-Complainant David Goldman on two causes of action in the currently operative Third Amended Cross-Complaint (“TACC”), i.e., (1) the 1st cause of action for Violation of the Stored Communications Act, 18 U.S.C. §2701, and (2) the 27th cause of action for reformation of the operating agreement of LBG Real Estate Companies, LLC (“LBG REC”). Issue #1: TACC’s 1st Cause of Action On issue #2, Goldman’s opposition represented that “Cross-complainants have voluntarily dismissed the first cause of action in the TACC for violation of the Stored Communications Act, which has mooted the first issue raised by the MSA. Accordingly, this Court need only decide the second issue raised by the MSA: whether the cross-claim for reformation is time barred.” (ROA #1624 [Opp.], p. 5.) In reply, Cross-Defendants contend that the are “aware of no such dismissal, none appears on the docket, and Cross-Complainant’s proposed Fourth Amended Cross-Complaint filed with their motion for leave to amend still includes that cause of action.” (ROA #1709 [Reply], p. 3.) The Court notes that on 8/6/2026, Defendants/Cross-Complainants also filed a reply in support of their motion for leave to file a fourth amended cross-complaint, in which Cross-Complainants represented that after that motion for leave was filed, “Defendants voluntarily dismissed the first cause of action in the Third Amended Cross Complaint for violation of the